



United States
Attorney's Office
Southern District of New York



Two Men Charged In HIV Medication Fraud And Identity Theft Scheme

Monday, June 30, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
New York

The United States Attorney for the Southern District of New York, Jay Clayton, and the Assistant Director in Charge of the New York Field Office of the Federal Bureau of Investigation ("FBI"), Christopher G. Raia, announced today the unsealing of a Complaint charging JOSUE TORRES and ANTHONY GUERRA with participating in a scheme to obtain high-cost medications for HIV and other illnesses by causing fraudulent prescriptions to be issued using the stolen identities of medical practitioners and those practitioners' purported patients. TORRES and GUERRA were arrested on June 17, 2025, and presented before U.S. Magistrate Judge Henry J. Ricardo.

"As alleged, the defendants stole the identities of doctors and patients to convert valuable, life-saving medications into a source of illicit profits," said U.S. Attorney Jay Clayton. "By feeding the black market for prescription medications, the defendants' alleged crimes endangered the safety of patients and undermined the integrity of our health care system. Together with our partners at the FBI, we are committed to bringing to justice those who seek to profit by defrauding pharmacies, drug manufacturers, distributors, and insurers."

"Josue Torres and Anthony Guerra allegedly procured and resold hundreds of illegitimate prescriptions through unauthorized access to pharmaceutical databases and copay assistance," said FBI Assistant Director in Charge Christopher G. Raia. "These defendants allegedly exploited private medical information of both practitioners and patients to perpetuate this elaborate scheme. The FBI remains committed to apprehending any individual who steals medications for illicit black-market profits."

According to the allegations in the Complaint:[\[1\]](#)

From at least in or about August 2021 through the present, TORRES and GUERRA participated in a scheme to cause fraudulent prescriptions to be issued for certain high-cost prescription medications (the "High-Cost Medications") used to treat HIV and other diseases, and to obtain those High-Cost Medications by picking them up at pharmacies or by having them shipped to a physical address.

TORRES accessed accounts on e-prescribing platforms using the names and other identifying information of certain physicians and other medical practitioners (the "Targeted Practitioners") without the Targeted Practitioners' authorization or knowledge. TORRES and GUERRA then used the e-prescribing platforms to cause High-Cost Medication prescriptions (the "Fraudulent Prescriptions") to be issued for certain individuals who did not require those medications (the "Sham Patients"). The image below shows TORRES picking up HIV medication issued to a Sham Patient on or about December 30, 2022.

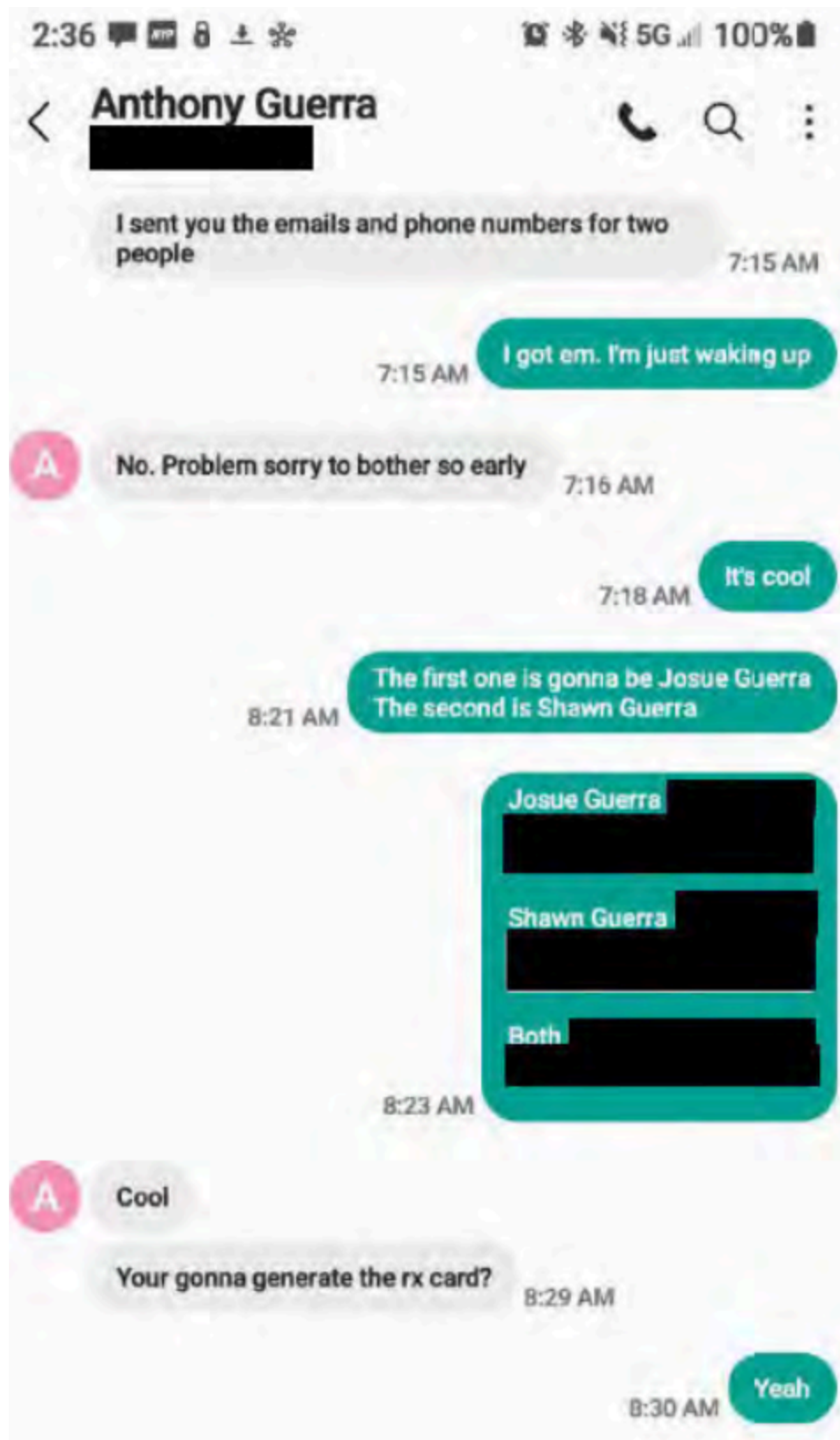


TORRES and GUERRA secured significantly reduced copay amounts for the High-Cost Medications associated with the Fraudulent Prescriptions through the use of copay assistance programs, with copay assistance cards that bore the names of the Sham Patients. In some cases, a Sham Patient's private health insurance provider paid out money to cover a portion of the cost of a High-Cost Medication.

In total, TORRES, GUERRA, and other co-conspirators caused approximately 693 Fraudulent Prescriptions, including prescription refills, to issue from approximately 18 Targeted Practitioners. Those Fraudulent Prescriptions contained approximately 55,626 tablets, capsules, or other units of medication, worth approximately \$2,638,581.[\[1\]](#)

TORRES and GUERRA went on to sell the High-Cost Medications, which have significant resale value on the black market.

Below are texts messages from 2021 between TORRES (messages with green background) and GUERRA (messages with grey background).



* * *

TORRES, 45, of Brooklyn, New York, and GUERRA, 37, of the Bronx, New York, are charged with one count of conspiracy to commit wire fraud and health care fraud, which carries a maximum sentence of 20 years in prison; and one count of aggravated identity theft, which carries a mandatory minimum sentence of two years in prison to run consecutive to any other prison term.

The statutory minimum and maximum sentences are prescribed by Congress and provided here for informational purposes only, as any sentencing of the defendants will be determined by a judge.

Mr. Clayton praised the outstanding work of the FBI in connection with this investigation.

The charges announced today are part of a strategically coordinated, nationwide law enforcement action that resulted in criminal charges against 324 defendants for their alleged participation in health care fraud and illegal drug diversion schemes that involved the submission of over \$14.6 billion in alleged false billings and over 15.6 million pills of illegally diverted controlled substances. The defendants allegedly defrauded programs entrusted for the care of the elderly and disabled to line their own pockets. In connection with this nationwide health care fraud takedown, the Government seized over \$245 million in cash, luxury vehicles, and other assets.

Descriptions of each case involved in today's enforcement action are available on the Department's website [here](#).

This case is being handled by the Office's General Crimes Unit. Assistant U.S. Attorney Henry Ross is in charge of the prosecution.

The charges contained in the Complaint are merely accusations, and the defendants are presumed innocent unless and until proven guilty.

[u.s. v. torres et al complaint.pdf](#)

[1] As the introductory phrase signifies, the entirety of the text of the Complaint and the description of the Complaint set forth herein constitute only allegations, and every fact described should be treated as an allegation.

[2] The approximate total value of the Fraudulent Prescriptions was calculated by multiplying the number of prescription and prescription refills for a given High-Cost Medication by the national average drug acquisition cost, or "NADAC," of that medication, as of in or about 2023. NADACs are published by the Centers for Medicare & Medicaid Services at: <https://www.medicaid.gov/medicaid/nadac>.

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Updated June 30, 2025

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Press Release Number: 25-152

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